

nor that they were Parties to the Treason, until they had raised Power to perform the same; and then to proclaim, All Grievances in the Kingdom should be reformed.

That they also took several Oaths, and receiv'd the Sacrament; First, for Secrecy; Secondly, for Prosecution; except they were discharg'd thereof by three of them.

That after the Destruction of the King, the Queen, the Prince, the Royal Issue Male, the Lords Spiritual and Temporal, the Knights and Burgeses, they should notify the same to foreign States; and thereupon Sir Edmund Baynam an attainted Person of Treason, and styling himself Prime of the damned Crew, should be sent and make the same known to the Pope, and crave his Aid: an Embassador fit both for the Message and Persons, to be sent betwixt the Pope and the Devil.

That the Parliament being prorogued till the 7th of February, they in December made a Mine under the House of Parliament, purposing to place their Powder there; but the Parliament being then further adjourned till the 3d of October, they in Lent following hired the Vault, and placed therein 20 Barrels of Powder.

That they took to them, Robert Winter, Grant, and Rookwood, giving them the Oaths and Sacrament as aforesaid, as to provide Munition.

July 20. They laid in more ten Barrels of Powder, laying upon them divers great Bars of Iron, and pieces of Timber, and great massy Stones, and covered the same with Faggots, &c.

September 20. They laid in more 4 Hogheads of Powder, with other Stores and Bars of Iron thereupon.

November 4. (The Parliament being prorogued to the 5th) at 11 a clock at Night, Fawkes had prepared (by the procurement of the rest) Touchwood and Match, to give fire to the Powder the next Day.

That the Treason being miraculously discovered, they put themselves, and procured others to enter into open Rebellion; and gave out most untruly, It was for that the Papists Throats were to be cut.

* Sir Edward Coke. * *Attor. General.* It appeareth to your Lordships, and the rest of this most honourable and grave Assembly, even by that which Mr. Serjeant hath already opened, that these are the greatest Treasons that ever were plotted in England, and concern the greatest King that ever was of England. But when this Assembly shall further hear, and see discovered the Roots and Branches of the same, not hitherto published, they will say indeed, *Quis hæc posteris sic narrare poterit, ut facta non ficta esse videantur?* That when these things shall be related to Posterity, they will be reputed matters feigned, not done. And therefore in this so great a Cause, upon the Carriage and Event whereof the Eye of all Christendom is at this day bent; I shall desire that I may with your Patience be somewhat more copious, and not so succinct, as my usual manner hath been; and yet will I be no longer than the very matter it self shall necessarily require. But before I enter into the particular Narration of this Cause, I hold it fit to give Satisfaction to some, and those well affected amongst us, who have not only marvelled, but grieved, that no speedier Expedition hath been used in these Proceedings, considering the Monstrousness and continual Horror of this so desperate a Cause.

1. It is, *Ordo Naturæ*, agreeable to the Order of Nature, that things of great weight and magnitude should slowly proceed, according to that of the Poet, *Tarda solet magnis rebus adesse fides*. And surely of these things we may truly say, *Nunquam ante dies nostros talia acciderunt*; neither hath the Eye of Man seen, nor the Ear of Man heard the like things to these.

2. *Veritas temporis filia*, Truth is the Daughter of Time; especially in this Case, wherein by timely and often Examinations, First, Matters of greatest moment have been lately found out. Secondly, Some known Offenders, and those capital, but lately, apprehended. Thirdly, Sundry of the principal Arch-Traitors before unknown, now manifested, as the Jesuits. Fourthly, Heretical, treasonable and damnable Books lately found out; one of Equivocation, and another, *De officio Principis Christiani*, of Francis Tresham's.

3. There have been already twenty and three several days spent in Examinations.

4. We should otherwise have hanged a Man unattainted, for Guy Fawkes passed for a time under the name of John Johnson: So that if by that name greater expedition had been made, and he hanged, though we had not missed of the Man, yet the Proceeding would not have been so orderly or justifiable.

5. The King out of his Wisdom and great Moderation, was pleased to appoint this Trial in time of Assembly in Parliament, for that it concerned especially those of the Parliament.

Now touching the Offences themselves, they are so exorbitant and transcendent, and aggregated of so many bloody and fearful Crimes, as they cannot be aggravated by an Inference, Argument or Circumstance whatsoever; and that in three respects:

First, Because this Offence is *Præ impressio*, and therefore *sine Nomine*, without any name which might be *adequatum*, sufficient to express it, given by any Legist, that ever made a writ of any Laws. For the highest Treason that all they could imagine, they called it only *Crimen læsæ Majestatis*, the violating of the Majesty of the Prince. But this Treason doth want an apt name, as tending not only to the Hurt, but to the Death of the King; and not the Death of the King only, but of his whole Kingdom, *Non Regis sed Regni*, that is, to the Destruction and Dissolution of the Frame and Fabrick of this antient, famous, and ever-flourishing Monarchy; even the Deletion of our whole Name and Nation: And therefore hold not thy Tongue, O God, keep not still silence, refrain not thy self, O God; for lo thine Enemies make a murmuring, and they that hate thee have lift up their Heads: They have said, Come, and let us root them out, that they be no more a People, and that the Name of Israel may be no more in remembrance. Psal. 83. 1, 2, 3, 4, 5.

Secondly, It is, *Sine exemplo*, beyond all Examples, whether in Fact or Fiction, even of the Tragick Poets, who did beat their Wits to represent the most fearful and horrible Murders.

Thirdly, It is, *Sine modo*, without all measure or stint of Iniquity; like a Mathematical Line, which is, *divisibilis in semper divisibilia*, infinitely divisible.

It is Treason to imagine or intend the Death of the King, Queen, or Prince.

For Treason is like a Tree whose Root is full of Poison, and lieth

secret and hid within the Earth, resembling the Imagination of the Heart of Man, which is so secret as God only knoweth it.

Now the Wisdom of the Law provideth for the blasting and nipping, both of the Leaves, Blossoms, and Buds which proceed from this Root of Treason; either by Words, which are like to Leaves, or by some overt Act, which may be resembled to Buds or Blossoms, before it cometh to such Fruit and Ripeness, as would bring utter Destruction and Desolation upon the whole State.

It is likewise Treason to kill the Lord Chancellor, Lord Treasurer, or any Justice of the one Bench or other; Justices of Assize, or any other Judge mentioned in the Statute of 25 Edw. III. sitting in their Judicial Places, and exercising their Offices. And the Reason is, for that every Judge so sitting by the King's Authority, representeth the Majesty and Person of the King; and therefore it is *Crimen læsæ Majestatis*, to kill him, the King being always in Judgment of Law present in Court. But in the high Court of Parliament, every Man by virtue of the King's Authority, by Writ under the Great Seal, hath a judicial Place; and so consequently the killing of every of them had been a several Treason, and *Crimen læsæ Majestatis*. Besides that to their Treasons were added open Rebellion, Burglary, Robbery, Horse-stealing, &c. So that this Offence is such, as no Man can express it, no Example pattern it, no Measure contain it.

Concerning foreign Princes; there was here a Protestation made for the clearing of them from all Imputation and Aspersions whatsoever.

First. For that whilst Kingdoms stood in Hostility, hostile Actions are holden honourable and just.

Secondly, It is not the King's Serjeant, Attorney, or Solicitor, that in any sort touch or mention them: For we know that great Princes and Personages are reverently and respectfully to be spoken of; and that there is *Lex in sermone tenenda*. But it is Fawkes, Winter, and the rest of the Offenders, that have confessed so much as hath been said: And therefore the King's Counsel Learned doth but repeat the Offender's Confession, and charge or touch no other Person. They have also slander'd unjustly our great Master King James, which we only repeat, to shew the Wickedness and Malice of the Offenders.

Thirdly, So much as is said concerning foreign Princes, is so woven into the matter of the Charge of these Offenders, as it cannot be sever'd or singled from the rest of the matter; so as it is inevitable, and cannot be pretermitted.

Now as this Powder-Treason is in itself prodigious and unnatural, so it is in the Conception and Birth most monstrous, as arising out of the dead Ashes of former Treasons. For it had three Roots, all planted and watered by Jesuits, and English Romish Catholics: The first Root in England, in December and March; the second in Flanders, in June; the third in Spain, in July. In England it had two Branches, one in December was twelve Months before the death of the late Queen of blessed Memory; another in March wherein she died.

First in December Anno Dom. 1601. do Henry Garnet Superior of the Jesuits in England, Robert Tesmond Jesuit, Robert Catesby (who was *bono jubaio & versuto ingenio & profunda perfidia*) together with Francis Tresham and others, in the names, and for the behalf of all the English Romish Catholics, employ Thomas Winter into Spain, as for the general good of the Romish Catholick Cause; and by him doth Garnet write his Letters to Father Creswell, Jesuit residing in Spain, in that behalf. With Thomas Winter doth Tesmond, alias Greenway the Jesuit, go as an Associate and Confederate in that Conspiracy. The Message (which was principally committed unto the said Winter) was, that he should make a Proposition and Request to the King of Spain, in the behalf and names of the English Catholics, That the King would send an Army hither into England, and that the Forces of the Catholics in England should be prepared to join with him, and do him Service: And further, that he should move the King of Spain to bestow some Pensions here in England, upon sundry Persons Catholics, and devoted to his Service: And moreover, to give Advertisement, that the said King of Spain, making use of the general Discontentment that young Gentlemen and Soldiers were in, might no doubt, by relieving their Necessities, have them all at his Devotion.

And because that in all Attempts upon England, the greatest Difficulty was ever found to be the Transportation of Horses; the Catholics in England would assure the King of Spain to have always in readiness for his Use and Service, 1500 or 2000 Horses, against any occasion or enterprise. Now Thomas Winter undertaking this Negotiation, and with Tesmond the Jesuit coming into Spain, by means of Father Creswell the Legier Jesuit there, as hath been said, had readily Speech with Don Pedro Francesca second Secretary of State, to whom he imparted his Message, as also to the Duke of Lerma; who assured him, that it would be an Office very grateful to his Master, and that it should not want his best Furtherance.

Concerning the Place for landing of the King of Spain's Army, which from the English Romish Catholics he desired might be sent to invade the Land; it was resolved, that if the Army were great, then Essex and Kent were judged fittest, (where note by the way, who was then Lord Warden of the Cinque Ports:) If the Army were small, and trusted upon Succour in England, then Milford-haven was thought more convenient.

Now there being at that time Hostility betwixt both Kingdoms, the King of Spain willingly embraced the Motion, saying, that he took the Message from the Catholics very kindly, and that in all things he would respect them with as great Care as his proper Castilians. But for his further answer, and full dispatch, Thomas Winter was appointed to attend the Progress. In the end whereof, being in Summer time, Count Miranda gave him this answer in the behalf of his Master, That the King would bestow 100000 Crowns to that use, half to be paid that Year, and the rest the next Spring following; and withal required that we should be as good as our Promise, for the next Spring he meant to be with us, and set foot in England. And lastly, he desired on the King's behalf, of Winter, that he might have certain Advertisement and Intelligence, if so it should in the mean time happen that the Queen did die. Tho. Winter laden with these Hopes, returns into England about a Month before Christmas, and delivered answer of all that had passed, to Henry Garnet, Robert Catesby, and Francis Tresham. But soon after set that glorious Light, her Majesty died: *Miracano; Sol occubuit, Nox nulla secuta est*.

Presently after whose Death was Christopher Wright, another Messenger sent over into Spain by Garnet, (who likewise did write by him to Creswell, for the furtherance of the Negotiation) Catesby and